Annexure C

AAR INDAMER TECHNICS PRIVATE LIMITED

CONTRACT SUPPLEMENT

This Contract Supplement (this "Supplement") is made by and between AAR Indamer Technics Private Limited ("AAR Indamer") and NIHVA Technologies Pvt Ltd Pune (Service Provider").

WHEREAS, AAR Indamer and Service Provider have entered into that certain [described contract for services] dated as of 07.12.2018 (the "Agreement"); and

WHEREAS, AAR Indamer and Service provider desire to supplement the Agreement with the terms and conditions set forth in this Supplement.

NOW THEREFORE, AAR Indamer Technics and Service provider agree as follows:

I. Agreement.The parties expressly agree that the terms and conditions of this Supplement are incorporated into and made a part of the Agreement, a copy of which is attached hereto; provided, however, that to the extent there is any inconsistency between the terms and conditions of the Agreement and this Supplement, then this Supplement shall govern.

II. Appointment. This Agreement establishes SERVICE PROVIDER as an independent professional services provider of AAR INDAMER. SERVICE PROVIDER is not an officer, employee or agent of AAR INDAMER and will not hold itself out as such. Except as AAR INDAMER may hereafter authorize by separate writing, SERVICE PROVIDER has no authority to change or alter offers and quotations from AAR INDAMER, to accept or confirm any orders, or to make any promise, warranty or representation on behalf of AAR INDAMER, or to bind or obligate AAR INDAMER in any manner whatsoever.

III. SERVICE PROVIDER Represents and Warrants to AAR INDAMER as Follows:

a. This Agreement has been duly authorized, executed and delivered by SERVICE PROVIDER. Neither the execution and delivery nor the performance of this Agreement will conflict with or result in a breach or violation of any law, or of any regulation, order, writ, injunction or decree of any court or governmental authority of any country in which



this Agreement is to be performed, except as SERVICE PROVIDER may have otherwise advised AAR INDAMER in writing, a copy of which, if any, is attached hereto.

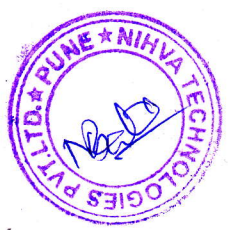
b. None of either SERVICE PROVIDER's officers, directors, partners, owners, principals, employees or agents are (i) officials, officers, employees or representatives of any government, any department, agency or instrumentality of any government (including state-owned or controlled entities or businesses), or any political party, or (ii) candidates for political office. SERVICE PROVIDER represents that no government official has any material financial or other ownership interest in SERVICE PROVIDER. SERVICE PROVIDER shall provide AAR INDAMER with prior written notification of any proposed changes (i) to the status of any of its officers, directors, partners, principals, employees or agents as stated in the first sentence of this subparagraph b., and/or (ii) in the ownership, control or management of SERVICE PROVIDER. Moreover, SERVICE PROVIDER shall not, without the prior written consent of AAR INDAMER, utilize any firms or persons other than regular employees of AAR INDAMER to provide services under this Agreement.

c. No authorization, consent or approval of, or notice to any government or any department, agency or instrumentality of any government, is required or necessary in connection with the execution and delivery of this Agreement by SERVICE PROVIDER or the performance by SERVICE PROVIDER of the services contemplated hereunder, except as SERVICE PROVIDER may otherwise have heretofore advised AAR INDAMER in writing, a copy of which, if any, is attached hereto.

Covenants by SERVICE PROVIDER.

d. In connection with the performance of the Agreement and this Supplement, SERVICE PROVIDER shall comply with all anti-corruption laws that are applicable to each of them and to the services to be provided hereunder, which laws include, but are not limited to, the U.S. Foreign Corrupt Practices Act ("FCPA"), the U.K. Bribery Act ("UKBA") and local laws of the various jurisdictions in which SERVICE PROVIDER performs services under the Agreement and this Supplement (collectively, "Anti-Corruption Laws"). Without limiting the generality of the preceding sentence, SERVICE PROVIDER willspecifically not engage in any form of bribery orcorruption, including the giving, promising, offering, requesting or agreeing toreceive or the accepting of bribes, monetary or otherwise, in connection with providing services to AAR INDAMER under this Agreement.

e. SERVICE PROVIDER will not directly or indirectly use or permit the use of any part of any monies, fees or commissions or reimbursement received hereunder to pay any commission or finder's fee to a third party, and will not share any commissions or reimbursement with any subrepresentatives or agents, except as otherwise disclosed in



advance to, and expressly approved in writing by, AAR INDAMER. SERVICE PROVIDER will not use or permit the use of any of its commissions or reimbursements hereunder for any purpose, nor will SERVICE PROVIDER take any action, which would constitute a violation of the Anti-Corruption Laws.

f. SERVICE PROVIDER is (i) familiar with the purposes and provisions of the Anti-Corruption Laws; (ii) will ensure that its senior management and all personnel performing services under this Agreement have received and will continue to periodically receive training on compliance with the Anti-Corruption Laws, and (iii) will notify the General Counsel of AAR INDAMER (or such other person as AAR INDAMER may designate) immediately of any request SERVICE PROVIDER receives to take any action that might constitute a violation of the Anti-Corruption Laws.

III. **Gifts.**

a. SERVICE PROVIDER will not in connection with the performance of services hereunder, pay or give any gifts of money or any other thing of value to any person exceeding the value of $25 United States Dollars without the prior written approval of AAR INDAMER. Further, SERVICE PROVIDER will record all costs and expenses incurred by SERVICE PROVIDER in connection with the performance of services hereunder fully and accurately in each of their respective books and records and that such records will be made available, upon AAR INDAMER's request or upon the request of any accounting firm it may designate, or, upon proper request, of the authorities of the government(s) of the country(s) in which the customer is located, or the authorities of the United States government.

b. SERVICE PROVIDER will record the purpose of each expenditure and the person to whom each expenditure was made and for whose benefit the expenditure was made, in its written books and records for each and every service that they perform for or on AAR INDAMER's behalf and that such records will be made available on request as described above.

c. SERVICE PROVIDER will, at its own expense, cooperate with any ethics and compliance investigations related to the services provided under this Agreement, which cooperation shall include, but not be limited to granting access to all of their respective (i) anti-corruption compliance-related procedures, (ii) anti-corruption compliance-related training materials and records, (iii) applicable financial records, including employee expense reports, and (iv) applicable email and bank accounts.

IV. **Notices.** All notices and other communications hereunder must be in English and in writing and will be deemed given if delivered personally, or by courier, sent by facsimile, or sent by



electronic mail to the parties at the following addresses (or at such other address for a party as may be specified by like notice):

a. If to AAR INDAMER, to: **AARIndamer Private Ltd.**

b. If to SERVICE PROVIDER, to:

NIHVA Technologies Pvt Ltd

Attn: Mr. Arjun Patil

Facsimile

Email arjun.patil@nihva.com

V. **Entire Agreement**. This Agreement constitutes the entire agreement and understanding of the parties hereto with respect to the transactions contemplated hereby, supersedes any and all contemporaneous or prior agreements and understandings related to the subject matter hereof, and may not be modified, amended or terminated except in writing signed by all of the parties hereto, or except as otherwise provided herein.

VI. **Construction**. Careful scrutiny has been given to this Agreement by each of SERVICE PROVIDER and AAR INDAMER and their respective legal counsel. Accordingly, the rule of construction that any ambiguities of the contract will be resolved against the party which caused the contract to be drafted will have no application in the construction or interpretation of this Agreement, or any clause or provision hereof.

VII. **Governing Law**. This Agreement shall be deemed to have been negotiated, drafted, entered into, and performed in part in Mumbai, India., and it shall be governed and construed by the laws thereof. Each of AAR INDAMER and SERVICE PROVIDER specifically agree that all parties intend their relationship to be governed exclusively by these laws, notwithstanding the fact that any party hereto may be a foreign corporation. .

The parties agree that all actions or proceedings arising directly or indirectly from this Agreement will be litigated only in courts having situs within Mumbai, India, and each of SERVICE PROVIDERand AAR Indamerwaives the personal service of any and all process upon it, and consents that all such service of process may be made upon it by courier, directed to each party at the address stated herein, and service so made will be deemed complete upon receipt.

PUNE * NIHVA TECHNOLOGIES PVT. LTD. *

VIII. **Assignment**. This Agreement will inure to the benefit of, and be binding upon, the respective successors and assigns of SERVICE PROVIDER; provided, however, that no assignment of any rights or delegation of any obligations provided for herein may be made by SERVICE PROVIDER, without the express prior written consent of AAR Indamer. This Agreement may not be assigned by SERVICE PROVIDER to any other person or entity and any such attempted assignment shall be void abinitio.

IX. **Counterparts**. This agreement may be executed in any number of separate counterparts, each of which will be deemed to be an original, but which together shall constitute one and the same instrument. A facsimile or digital or electronic signature on any counterpart hereto will be deemed an original for all purposes.

X. **Headings; Definitions**. The headings contained in this Agreement are inserted for convenience of reference only and will not affect the meaning or interpretation of this Agreement.

XI. **Severability**. If any term, clause or provision contained herein is declared or held invalid by any court of competent jurisdiction, such declaration or holding shall not affect the validity of any other term, clause or provision herein contained.

XII. **Excusable Delay**. Neither party will be liable for damages when its performance is delayed or prevented by strike, fire, riot, war, rebellion, insurrection, acts of God, failure or shortage of transportation facilities, governmental regulations, inability or failure of suppliers to deliver parts or material, or other causes beyond its control.

XIII. **Currency**. Any references herein to amounts of money will pertain to the currency of the Country of India.

XIV. **Termination.** Notwithstanding anything to the contrary set forth in this agreement, AAR INDAMER may terminate this agreement (i) immediately upon written notice to SERVICE PROVIDER in the event SERVICE PROVIDER fails to meet its contractual obligations under this agreement, and (ii) upon 30 days prior written notice to SERVICE PROVIDER for any other reason. In the event of termination, AAR INDAMER shall pay to SERVICE PROVIDER all appropriate fees and expenses incurred under this agreement prior to the date of termination.

XV. [INTENTIONALLY RESERVED] [Insert any additional commercial terms between the parties here. For example, if adding milestones/deliverables or payment schedule terms that are different from the Agreement or which the Agreement does not address at all].

IN WITNESS WHEREOF, AAR Indamer and Service Provider have caused this Supplement to the Agreement to be executed by a duly authorized representative.



AAR INDAMER TECHNICS PRIVATE LIMITED

By:

Name:

Date:

[SERVICE PROVIDER]

By: NIHVA Technologies Pvt Ltd

Name: Mr. Arjun Patil

Date: 07.12.2018

